**The Long Peyote Road: A History of Peyotism and Indigenous Resistance**

*"You have seen how it is when we walk for the peyote how we go, not eating, not drinking, with much hunger, with much thirst. With much will. All of one heart, all of one will. How one goes, being Huichol. That is our unity, that is our life. That is what we must defend."*

-- Ramon Medina Silva

This quote from Ramon Medina Silva was preserved by Barbra Myerhoff in her notes as Silva guided her and his village on a special journey—The Peyote Hunt. Silva was a Mara'akame, a medicine man of the Wixarika (formerly Huichol) people of western Mexico, and while his statement made back in the 1960s speaks of the experience of the Wixarika, the message of the quote spans more cultures than just his own. From Spanish colonization in 1521 unto the twenty-first century, Indigenous people have been the survivors of some of the most tumultuous changes in human history. Intentional elimination of Indigenous cultures and religions has been a core component of colonization as European settlers seized lands and began to enforce a status quo that normalized settler-colonial culture and eliminated or outlawed Indigenous cultures. While this has happened in innumerable iterations, this work will focus on the intersection of three elements: imposed settler culture, Indigenous resistance to erasure, and the spiritual practices of Peyote religions of the Wixarika, the Comanche and the Native American Church.

*The Long Peyote Road* presents a series of case studies about three Indigenous cultures that consume a plant called Peyote, arguing that religions that centralize Peyote have historically served Indigenous communities as a site of community building and power; from which Indigenous communities have deployed culturally-distinct methods of resistance to settler customs and law. These methods consist of withdrawal and continuity through collective cultural practice, tactical legibility-making, direct confrontation, and coalition statecraft to confront settler-colonial pressures. The spirit of "one will," described by Silva encapsulates the feelings of

hundreds of thousands of Indigenous people who have dedicated themselves to, fought for, and suffered for their Peyote religion, and in doing so have forged something so unique that it has successfully resisted erasure for five centuries.

## Method and Background

The English language is profoundly stunted when it comes to describing spiritual experience. The language exists to describe western ideas, so it is hard to describe concepts that arose outside of that context without using terms like "sacrament" "rite" or "religion" – these are useful shorthand that carry more weight than something like "tradition" that might be dismissive of the spiritual experience and conduit that Peyote is. These terms also are intertwined with a long history of formalized religions like Catholicism and Protestant Christianity which have been used to colonize and destroy Indigenous cosmologies, cultures, and people with extreme prejudice. This is doubled by the fact that terms like "religion" as defined by law have often been used to exclude or divide Indigenous culture, but the history of religion and law are the framework from which most scholars in this space operate. This work will also intentionally capitalize Peyote, just as Eucharist is, to show reverence for consumed sacraments. I hope that recognition of this history, and the limitations of language contrasted by the spiritual boundlessness of Peyote consumption, show that the use of language here is both unfortunate and only done from necessity.

However, English does have some strengths that assist this effort. One useful term is "entheogen," coined by A.P. Ruck et al. as, "a neologism to designate psychoactive substances employed in culturally sanctioned visionary experiences in ritual or religious contexts."[1] Or as

[1] Ruck, C.A.P.; Bigwood, J.; Staples, D.; Ott, J. & Wasson, R.G. 1979. Entheogens. Journal of Psychedelic Drugs 11 (1-2): 145-46.

described by Ruck's co-author, Johnathan Ott, "becoming divine within."[2] This word is useful because it replaces both "drug" and "psychedelic" with a meaning that is more spiritually and culturally attuned rather than pejorative. Entheogens are materials that allow someone to connect with or become divine.

The other term that is useful for this work is "settler-colonialism," coined by Patrick Wolfe as, *"*. . . a winner-take-all project whose dominant feature is not exploitation but replacement. The logic of this project, a sustained institutional tendency to eliminate the Indigenous population . . . invasion is a structure not an event."[3] This framing gives a clear picture of what Indigenous peoples are resisting in this story, a system of control that, if unresisted, would culminate in erasure and elimination. Entheogens defend against that system because of their ability to find truth and divinity within oneself that are disallowed by the settler-colonial state.

Rather than treating Peyote religion as a static "tradition," this project views Peyotism as a historically adaptive Indigenous technology of healing and community building that repeatedly collides with—then strategically navigates—settler-colonial order. That framing borrows from three overlapping scholarly conversations. First, scholarship on Peyote, healing, and Indigenous cosmologies helps clarify that the "religion/medicine" divide is not neutral, it is evidence of an ongoing colonial recognition test. Historian Edward Polanco's study of Nahua healing under early Spanish rule foregrounds how colonial power targeted practitioners and gendered medical authority, not simply "belief."[4] That intervention matters because it treats early anti-Entheogen

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[2] Jonathan Ott, "Entheogens II: On Entheology and Entheobotany," *Journal of Psychoactive Drugs* 28, no. 2 (April–June 1996): 205. https://catbull.com/alamut/Bibliothek/1996_ott_8144_1.pdf

[3] Wolfe, Patrick. *Settler Colonialism*, Bloomsbury Publishing Plc, 1998. *ProQuest Ebook Central*, p 163. http://ebookcentral.proquest.com/lib/vt/detail.action?docID=472799.

[4] Edward Anthony Polanco, *Healing Like Our Ancestors: The Nahua Tiçitl, Gender, and Settler Colonialism in Central Mexico, 1535–1660*, Tucson: University of Arizona Press, 2024.

repression as an attack on Indigenous political order and expertise, not just superstitious policing. Likewise, ethnographer Barbra Myerhoff's documentation of the Wixárika Peyote pilgrimage is invaluable for showing Peyote as an integral social practice that produces close community and continuity.[5] Another ethnographer, David Aberle, is most useful for understanding twentieth century Native American Church ritual practice. Historian Thomas Maroukis is most effective at presenting the process of religious life as an object under legal scrutiny—something that must be described, bounded, and proven to the state.[6] [7] These scholars present a view of Peyote religions as something culturally significant, and serve as a cross-section how those religions have been viewed by practitioners, ethnographers and the state.

The second body of literature are legal histories of the U.S. focused on religious freedoms. These detail the conceptual battlefield on which Indigenous religions are forced to prove their legitimacy to the state. Michael McConnell's account of free exercise is foundational to understand what the First Amendment was for—especially the originalist story about conscience and protection from targeted penalties.[8] Historian Philip Hamburger functions as a revisionist retrospective of constitutional originalism that argues that the popular conceptions of separation of church and state is far removed from the historical reality, a counterbalance to McConnel.[9] Tisa Wenger's intervention is the hinge for my project: she insists that religious freedom is not simply a principle applied to groups, but a site of contest where the state decides

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[5] Barbara G. Myerhoff, *Peyote Hunt: The Sacred Journey of the Huichol Indians*. Ithaca, NY: Cornell University Press, 1974.
[6] David F. Aberle, Harvey C. Moore, and Denis F. Johnston, *The Peyote Religion Among the Navaho*. Chicago: Aldine Publishing Company, 1966.
[7] Thomas C. Maroukis, *The Peyote Road: Religious Freedom and the Native American Church*. Norman, OK: University of Oklahoma Press, 2010.
[8] Michael W. McConnell, "The Origins and Historical Understanding of Free Exercise of Religion." Harvard Law Review. 103, no. 7 (1990), 1409–1517.
[9] Philip Hamburger, *Separation of Church and State*. Cambridge, MA: Harvard University Press, 2002

what counts as religion in the first place.[10] I use that to interpret Peyote litigation not as a binary of protection and vulnerability, but as a recurring process of reclassification that rewards legibility and punishes those who refuse to make that legibility.

Histories of Indigenous resistance to settler repression construct a frame to view Peyote religions as agents operating inside colonial constraint, not as passive victims of settler ideology and is the third body of literature. Carolyn Long adds to Wenger's argument to show that courts repeatedly demand that Indigenous communities translate lifeways into church-like forms; their shared contribution is to make "religious freedom" look like a governing technique with uneven distribution.[11] Garret Epps is essential here because he reconstructs *Employment Division v Smith* as-lived by those involved in the case to both detail and humanize the experience of all parties involved.[12] Finally, Marci Hamilton and Noah Feldman help me name what is structurally at stake: not only whether religion is protected, but how established systems of protection can produce domination, exemptions, and unequal citizenship.[13] [14]

These valuable academic writings do a good job of fleshing out the macro and micro perspectives on Peyotist religious history and legal protections. All are valuable, but no one seems to be saying what I am seeing in this history: that Peyotism is a site of power and of Indigenous resistance to colonization. I undertake this discussion by treating Peyotism as equal to any other religion, using respectful terms, capitalizing sacraments, clergy, and respecting the mutable nature of religion to change over time. I argue that Peyote religions are best understood

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[10] Tisa Joy Wenger, *We Have a Religion: The 1920s Pueblo Indian Dance Controversy and American Religious Freedom*. Chapel Hill: University of North Carolina Press, 2009.
[11] Carolyn Nestor Long, *Religious Freedom and Indian Rights: The Case of Oregon v. Smith*. Lawrence: University Press of Kansas, 2000.
[12]Garrett Epps, *To an Unknown God: Religious Freedom on Trial*. New York: St. Martin's Press, 2001.
[13] Marci A. Hamilton, *God vs. the Gavel: Religion and the Rule of Law*. Cambridge: Cambridge University Press, 2005.
[14] Noah Feldman, *Divided by God: America's Church-State Problem—and What We Should Do About It*. New York: Farrar, Straus and Giroux, 2005.

as a site of Indigenous power; Peyote is an Entheogenic-sacrament that generates collective reflection and community mobilization, spurring resistance in different forms: the Wixárika withdrawal, Commanchie legibility-making, Al Smith's direct resistance to settler-colonial "war on drugs" framing, and the Native American Church doing coalition building and statecraft within systems of colonial control. This position stands in opposition to polemics about benevolent "founding fathers" creating an imperfect but improving republic—settler-colonial societies are mechanisms that grow state power and threaten the cultures that those systems contact. It is under that pressure that Peyotism surreptitiously survives and spreads, moving and changing over time.

The thing that seems to change most dramatically in this story is the categorization of what Peyote is. Prior to Spanish colonization of the Americas, Peyote was a medicine, a powerful one that could heal wounds and provide guidance when eaten. To cultures like the Wixarika, it is a core component of life. The Spanish reclassified it as a dangerous and heretical form of alcohol, or even as a demonic plant in the sixteenth century. In the twentieth century, Peyote was persecuted as a "drug," while also serving as the central sacrament to the newborn Native American Church. In 1970, the federal government of the United States, classed Peyote as a Schedule 1 Drug, because it contained mescaline, an alkaloid determined dangerous by the state.

The reality is that Peyote is all-of and yet none-of these things; it is a tiny, slow-growing cactus that takes over a decade to mature while hiding in the shadows of the Chihuahuan desert. It does contain mescaline, perhaps evolved as an insect repellant, but to date there are no reports of anyone sustaining long-term injury from consuming it. Taking all of these perspectives into account, I conclude that Peyote should be treated with respect, there are many entities that recognize its power, and I shall as well. I chose to trust that those who love this holy plant know

it better than any government or outside institution could. Afterall, six millennia is a long time to get to know the local flora.

## A Glimpse of the Holy Plant

Readers may be surprised to learn that Indigenous peoples have been consuming Peyote for almost 6000 years. Published in the *Journal of Ethnopharmacology,* a research team found, "two peyote samples [that] appear to be the oldest plant drug ever to yield a major bioactive compound upon chemical analysis. The identification of mescaline strengthens the evidence that native North Americans recognized the psychotropic properties of peyote as long as 5700 years ago." [15] This archeological evidence means that the practice of consuming Peyote is older than Islam, Christianity, and Judaism, arising around the same time as Hinduism 2300-1500 BCE. For a vast majority of that time, the consumption of Peyote was utterly unknown to Europeans who had yet to cross the Atlantic Ocean. Consuming Peyote and other plant-medicines was a continual practice that has persisted until today, despite severe disturbances from across the Atlantic.

When the Spanish invaded the Mexica capital of Tenochtitlan in 1521, one of their top priorities was ending the Nahua's medical arts and attempted to fill that space with Catholicism.[16] The Nahua Titicih (healers and advisors) had been consuming sacred plants (and fungi) like psilocybin mushrooms and morning glory seeds for generations. These materials connected the Titicih to divine knowledge, helped solve problems and heal both physical and

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[15] Hesham R. El-Seedi, Peter A. G. M. De Smet, Olof Beck, Göran Possnert, and Jan G. Bruhn, "Prehistoric Peyote Use: Alkaloid Analysis and Radiocarbon Dating of Archaeological Specimens of *Lophophora* from Texas," *Journal of Ethnopharmacology* 101, nos. 1–3 (October 3, 2005): 238–42, https://doi.org/10.1016/j.jep.2005.04.022

[16] Edward Anthony Polanco, Healing Like Our Ancestors: The Nahua Tiçitl, Gender, and Settler Colonialism in Central Mexico, 1535–1660 (Tucson: University of Arizona Press, 2024) p 12.

spiritual maladies; for the Nahua there was no distinction between the medical and psycho-spiritual, until the Spanish created one.

The Spanish sought information about plant-medicines both to prevent their use and in some cases bend them to benefit the colonial center in Spain—it is from this process that the Spanish first found out about Peyote. Bernardino de Sahagún, a Franciscan priest from Spain was first to document Indigenous Peyote in his enciclopedia titled, *Bernardino de Sahagún Historia General de las Cosas de Nueva Espana*. Sahagún lived in New Spain (modern Mexico) and wrote early ethnographies of the peoples who lived in the area. He sourced information from observations, and information from the local Nahua people. In the book he notes a Nahua source that says Peyote was a medicine of other people to the north, "[The Teochichimecas] also possessed great knowledge of herbs and roots, and knew their properties and virtues: It was they who discovered and first used the root they call peyotl, and those who ate it and took it, made it serve in place of wine, and in place of what are called nanacatl (mushrooms)."[17] The use of medicinal plants extended far beyond the Nahua or Catholic Spanish control. The word Teochichimecas was a Nahua word that referred to multiple people groups to the north, one of the most renown of those groups are the Wixárika people in the Sierra Madre Occidental mountains of west-central Mexico and the place where we see the first Peyotist culture clearly.

## The Roots: Peyote and the Wixarika

The Wixárika have an ancient relationship with Peyote, which is one part of a Maize-Deer-Peyote Complex—to the Wixarika people, these are three life-giving materials on which

[17] Valentina Pavlovna Wasson and R. Gordon Wasson, *Mushrooms, Russia and History*, 2 vols. (New York: Pantheon Books, 1957), 1:225, https://archive.org/details/wasson-1957-mushrooms-russia-history/page/225/mode/2up?q=peyote

their way of life depends.[18] To the Wixarika, there is no difference between those things and themselves, rather they are interdependent with one another. Myerhoff writes that the same is true of their religious beliefs at large, "there is no distinction between the sacred and the profane, nor is there even a reliable separation between secular and sacred." [19] There is only distinction between what is Wixárika and what is not and the distinction is as simple as the ability to recognize what is beautiful and what is not.

The Wixárika were located north of the Spanish sphere of influence, the geography of their home in the steep Sierra Madre Occidental Mountains and pre-contact political marginality made a buffer zone against the Spanish. Historian John P. Schmal indicates that there may have been a concerted effort among some Wixárika to avoid Spanish contact by retreating into smaller communities.[20] This technique of intentional withdrawal protected the Wixárika people from the most immediate impacts of Spanish colonization. Scholars seem to agree that the Wixárika likely exercised some degree of intentional contraction to avoid the Spanish.[21] I argue this is a tactic of resistance—withdrawal and continuity through collective cultural practice—in the face of settler colonial pressure. That strategy safeguarded the Wixárika from initial waves of Spanish colonization. They eventually had contact with the Spanish in the eighteenth century, as evidenced by the establishment of a Franciscan mission 1730c. That contact does not seem to have stalled Peyote's centrality to the Wixárika culture, either the Catholic church was not able to apply their full pressure, and/or the Wixárika were able to persevere despite outside pressure. Myerhoff argues that is partly because of the annual Peyote Hunt.

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[18] Barbara G. Myerhoff, *Peyote Hunt: The Sacred Journey of the Huichol Indians* (Ithaca, NY: Cornell University Press, 1974) 21-22
[19] Myerhoff, *Peyote Hunt,* 73-74
[20] John Schmal, "Indigenous Nayarit: Resistance in the Sierra Madre," *Indigenous Mexico*, September 5, 2019, https://www.indigenousmexico.org/articles/indigenous-nayarit-resistance-in-the-sierra-madre
[21] Juan Negrín, "Post-Hispanic History," *Wixárika Research Center* (PDF), June 2003, https://www.wixarika.org/sites/default/files/2023-07/posthispanichistory.pdf

This Hunt is one of the most fascinating cultural elements because the range of Peyote is about four-hundred miles east of where they currently live, no small journey for a people who travel on foot. About half of the community travels together over that distance to ritually harvest Peyote and return to their mountain homes. Myerhoff infers that this holy ancestral practice is evidence of migration by prior generations, and it is an annual reminder of their connection to the Deer-Maize-Peyote complex.[22] I continue that argument that this process of a return to the wilderness and shared cultural experience was a boon to resisting elimination by colonization. I have not found a source that describes how the Wixárika consume Peyote together, but I believe they would share a Communion of Peyote, particularly because they seek the Entheogen collectively. This process of Peyote Hunt and the plant itself is a medicine that works through community. The Wixarika must have been very tight knit to still exist effectively unchanged at the core. Therefore, we see the first instance of Peyote as a cultural node of resistance by the method of strategic withdrawal and cultural continuity through communal practice.

The only glimpse I could find about solo experience comes from Myerhoff, who describes her own solo experience eating Peyote in the 1960s after requesting a dose from her Mara'akame friend, Ramon.[23] In her experience, she was told to fast before returning to his home the next morning. Ramon fed Barbra a dose of "the small green "buttons" or segments one after another, perhaps a dozen or more in all . . ."[24] and he left her to lie on the floor, while he went outside. She describes no nausea, but does feel euphoria, a sense of timelessness and a vision of Ramon turning into a giant bird. In that space she also has a personal "message" that the Peyote directed her to "pay attention to what was going on around her," she describes that phrase as the

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[22] Myerhoff, *Peyote Hunt,* 56
[23] Myerhoff, *Peyote Hunt,* 40-44
[24] Myerhoff, *Peyote Hunt,* 40

mantra for her life. While this description, and the presence of a revelation is helpful to have an internal reflection from a wordsmith like Myerhoff, the book does not attempt a deep examination of communal practice. There are Mexican sources on the practice, written in Spanish, but my inexperience with the language is an impediment to this work. The fact that she was able to experience Peyote consumption with a Wixárika Mara'akame is testament to the longevity of the Wixárika culture, despite their proximity to Spanish colonization and cultural repression.

## Pollination

The Wixárika were not the only Indigenous group to have a relationship with Peyote. In the 19th century, Peyote religions straddled the shifting Mexico/Texas/US borderlands, overlapping the range of the Lipan and Mescalero Apache. In his chapter about the origins of Peyotism, Edward Anderson cites an anthropological consensus building around J. S. Slotkin.[25] In 1956 Slotkin presented different competing hypothesis about the origins of American Peyotism; I argue the one that holds the most water is that the Apache in the area were exposed to Peyote rituals prior to the eighteenth century through contact with other cultures, perhaps even the Wixarika. The Apache then took those consumption methods and changed the ceremony to fit their own culture from one of dancing to one of chanting, drumming, and singing.[26] Because the Apache are a far more mobile people group, who traveled often, making connections and conducting business with other Indigenous peoples, they were accustomed to selective cultural exchange. Slotkin posits that because of their style of culture and frequent simultaneous contact

[25] Edward F. Anderson, *Peyote: The Divine Cactus*. Tucson: University of Arizona Press, 1996, p 32, https://uapress.arizona.edu/book/peyote.
[26] Slotkin, J. S. The Peyote Religion: A Study in Indian-White Relations. Glencoe, IL: The Free Press, 1956 p 30.

with Peyotists and Christians, they may have made a hybridization of those prayer methods to suit them.

This aligns with other scholarship on how a plant-medicine can move and spread outside of its natural range and maintain cultural significance to other peoples. Abena Osseo-Asare's *Bitter Roots: The Search for Healing Plants in Africa*, talks extensively about the phenomenon of human-spurred plant spreading.[27] One of her more minor arguments is that medicinal plants have changed or expanded into new habitats because people need them while traveling. This body of scholarship indicates that if Peyote is good medicine and useful, the Apache likely took it along. A trend that would continue into the twentieth century flourishing in the hands of the Commanche.

## A Carpet of Peyote Flowers

The second time that Peyote served as a center of resistance in this story was when it became part of the culture of the Comanche who lived in modern Oklahoma and Texas. In the late nineteenth century, American colonization had changed the political landscape drastically. When the Treaty of Guadalupe Hidalgo ended the Mexican American War in 1848, Mexico was forced to relinquish its territorial claims north of the Rio Grande River to the United States.[28] The federal government of the United States consolidated most of the continent under the auspices of manifest destiny. In a pen stroke, millions of Indigenous people from different communities lived within a space over which the United States claimed dominion.

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[27] Abena Dove Osseo-Asare, *Bitter Roots : The Search for Healing Plants in Africa*, University of Chicago Press, 2014. ProQuest Ebook Central, https://ebookcentral.proquest.com/lib/vt/detail.action?docID=1573579.
[28] United States House of Representatives, History, Art & Archives, "Era of U.S. Continental Expansion," *Hispanic Americans in Congress: Historical Essays*, https://history.house.gov/Exhibitions-and-Publications/HAIC/Historical-Essays/Continental-Expansion/Era-of-U-S--Continental-Expansion/

One of these cultures was the Comanche led by Chief Peta Nocona. The Comanche were actively fighting and resisting colonization, often entering pitched battles with contingents of the US Army. In 1864, Nocona was killed in the battle of Pease River, and his wife Cynthia Ann Parker was captured—leaving their fifteen-year-old son Quanah an orphan.[29] Quanah grew to be a fearsome Chief who had continued to fight outsiders and threats to the Comanche in Texas and Oklahoma for most of his life. However, after relentless pressure from the U. S. Army, and dwindling supplies of game from the Americans intentionally hunting the buffalo to extinction, Quanah decided to reassess his approach. Ultimately, Parker found conditional assimilation to be the best strategy to deal with colonization. In 1875, he surrendered with seven-hundred Comanche warriors in Oklahoma at Fort Sill.[30] On the reservation he put Comanche and Kiowa kids into western style schools and focused on skill building as marketability for economic prosperity.[31] However, just because he understood the value of trades and working in the market, did not mean he was ready to surrender to white culture.

Quanah Parker used his position and positionality as someone who was half-Indigenous and half-white to serve as both a bridge and a defense between the Comanche, other Indigenous allies and white cultures. He was able to get good terms for his people and was apparently comfortable enough with the arrangement that he visited his mother's brother in Mexico in 1885 where he met near-deadly misfortune. Two competing stories indicate that Parker became gravely ill during his journey—one story says he was gored in the abdomen by a bull, suffering a

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[29] George Levrier-Jones, "Captured by the Comanche in the American West in the 1830s: The Story of Cynthia Ann Parker," *History is Now Magazine, Podcasts, Blog and Books* (blog), March 9, 2024, https://www.historyisnowmagazine.com/blog/tag/Peta+Nocona

[30] Omer Call Stewart, *Peyote Religion*. 1st ed. Vol. 00181. University of Oklahoma Press, 1987. EBSCOhost. p 72

[31] Stewart, *Peyote Religion*, p 73

grave injury and blood poisoning; the other that he had a severe stomach ailment.[32] In either case the seemingly-invincible Commanche Chief was on deaths door.

Available accounts indicate that, "the Indians gave Quanah 'woqui,' which was a strong drink made from boiled green cactus [in this case, Peyote juice]."[33] He must have had a powerful personal experience, because after he survived his brush with death, Parker became a powerhouse of a missionary and defender of Peyotism. Quanah Parker's experience pushed him to proselytize the values of Peyote as far and wide as possible. His own people began to consume Peyote in all night ceremonies, and from there it spread to local allies like the Kiowa, and even further afield.

As Chief of the Comanche, a judge on the intertribal jury, and through daily political influence, Parker made ways to ingratiate himself to the Department of the Interior while also batting away threats to the budding Peyotism. Despite his efforts, it did not take long for reports of "mesacal beans" (a different plant) to spread through the Department of the Interior, who banned both Mescal and Peyote on federally controlled reservations in 1888.[34] Parker continued to secretly but actively proselytize to other Indigenous communities, even those outside Oklahoma. In doing so, Parker made converts, friends from many nations, and allies among white people for decades until his death in 1911.

Parker's passing was a critical moment where Peyotists didn't have someone inside the government to resist for them. Fortunately, one ally that Parker made was James Mooney, the ethnographer, who worked for the Department of Ethnography for the federal government. States were already wise to the fact that Indigenous people, the Comanche and others were consuming

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[32] Stewart, *Peyote Religion*, p 72
[33] Stewart, *Peyote Religion*, p 72
[34] Stewart, *Peyote Religion*, p 75

Peyote, so state and territorial legislatures banned it. Oklahoma was the first ban in 1899, in 1917 Utah followed Oklahoma and kicked off a trend of state legislatures banning Peyote through the 1930s; in total nine states banned the cacti. After the Utah ban, Peyotist leaders, with the assistance of Mooney, crafted a framework that could protect Parker's followers as a fully-fledged religion that could be recognized by the First Amendment.[35]

The new generation of Peyotist leaders worked with James Mooney to create incorporation documentation, in which, they intentionally and explicitly folded in Christian symbology and signals that could render Peyotism less exogenous and more as a religion recognizable by outsiders.[36] The Native American Church (NAC) opted to take recognizable Christian symbols and structures and combine those with Indigenous ritual practices that were already being used. The NAC would continue to chant, drum, smoke tobacco and consume Peyote in collective worship around an earthen alter by incorporating under a charter as a Christian religion within the state of Oklahoma promising to, "teach the Christian religion with morality, sobriety, industry, kindly charity and right living and to cultivate a spirit of self-respect and brotherly union among the members of the Native Race of Indians, including therein the various Indian tribes in the State of Oklahoma."[37] To further emphasize their good values, the NAC leaders created a moral code—all members were to do the following: to live a life that respected family, respected community, was self-sufficient, and was sober from alcohol—a set of beliefs called the Peyote Road. The NAC was able to protect its members by adding Christian

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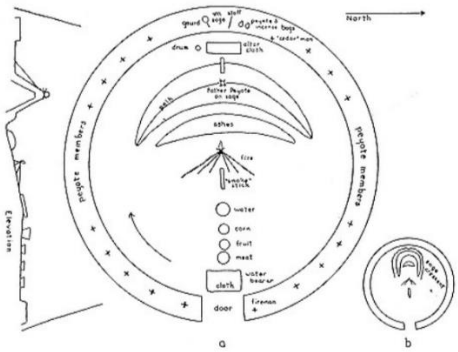
[35] James Warren "Flaming Eagle" Mooney, "The Articles of Incorporation for the Native American Church," James Warren "Flaming Eagle" Mooney (blog), https://jameswfemooney.com/the-article-of-incorporation-for-the-native-american-church/

[36] Mooney used his knowledge as an ethnographer to advance the position of the peyotism in the United States, both with Indigenous groups that were considering banning the practice locally and testifying before the US House of Representatives in 1918. After his testimony, Commissioner of Indian Affairs, Cato Sells banned the Mooney from entering the territory of Oklahoma and from conducting fieldwork on any reservation.

[37] James Warren "Flaming Eagle" Mooney, "The Articles of Incorporation for the Native American Church"

elements like the Peyote Road code of conduct, monotheistic framing, sobriety, [38] and allying themselves with outward moral rudiments held by other Christian sects. This is an example of Peyote communities performing tactical legibility-making.[39]

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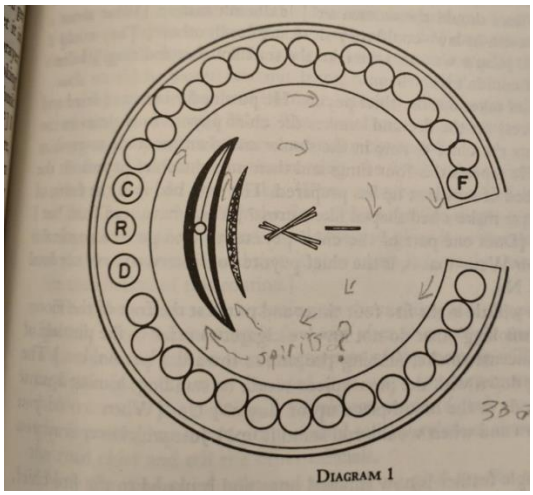


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It is here that we finally get clear renderings of what a group Peyote ceremony can look like; the description I provide is a condensed synthesis of David Aberle and Omer Call Stewart's works on the Half-Moon variation.[42] Common features are the crescents of earth and ash, the fire, surrounded by a nearly complete circle of attendees. The conductor of the rite is the Roadman, he provides materials like Eagle Feathers, Ceder, Sage, Tobacco and the Chief Peyote—usually a large specimen that sits center on the large earthen alter. The Chief Peyote serves as the central focus for the all-night experience. The Roadman and his assistants: the Drummer Chief, the Ceder Chief, and the Fire Chief sit among the attendees, with all but the

[38] This is going to be important soon.
[39] David F. Aberle, *The Peyote Religion among the Navaho* (Norman: University of Oklahoma Press, 1991) p 129
[40] Stewart, *Peyote Religion*. p 343
[41] Aberle, The Peyote Religion among the Navaho, p 129
[42] Note that there is diversity in application. Even the two related examples here are not the same. Each local chapter of the NAC can take on different emphasis and approaches from the others. I see this as a parallel to Protestantism which is collectivized but radically diverse. The two studies I cite are useful to find commonality, but not exhaustive.

latter sitting behind the center of the crescents moving about to tend to their tasks. Together they orchestrate a service for the attendees in which they consume Peyote, feel discomforts like nausea, dizziness, and a mild panic, that gives way to the experience of entheogenisis for healing, good luck, problem solving and collective cultural practice.

The fire burns through the night, tended by the Fire Chief, while the Drummer Chief Drums, the Roadman sings prayers, and the Ceder Chief feeds Ceder to the fire and provides Tobacco and Sage to the congregation. The Tobacco is smoked ritually, followed by wiping the body, face, and hands with the Sage thereby rendering the attendee cleansed. Finally, Peyote is passed around to the congregation; each person can take as many or as few "buttons" as they desire. There are times for water, times for silent contemplation and times for more rounds of Peyote and Tobacco until the event ends at daybreak. Some congregations, particularly the Cross-Fire variation, incorporate more Christian elements like readings from the Bible and do not use Tobacco.[43] This is a complex, and rich nexus of community, sacrament, and Entheogenic experience that is focused on problem solving, community connection and healing that was able to still happen because of the legibility efforts of NAC leadership and James Mooney.

By tactically making their religion recognizable to the American legal system, the NAC was able to shelter such an esoteric religion within the protection of the First Amendment of the Bill of Rights. The First Amendment has two clauses that say that the government cannot establish a religion nor can it prevent free exercise of religions. Tactical legibility kept this unique faith alive and less persecuted than would otherwise be allowed. So, when states continued to ban Peyote from 1918 through the 1930s, the NAC was still allowed to operate because it was a recognized religion.[44] From these Peyote ceremonies Indigenous peoples were

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[43] Stewart, Peyote Religion, p339
[44] The NARF Legal Review 20, no. 1 (Winter/Spring 1995), Native American Rights Fund, p 8-10

able to problem solve together and continually reconnect to a source of power that was distinctively Indigenous. Instead of a single act of resistance, this approach created a renewable platform for community development and further resistance efforts. The adaptability and clever strategy of selective accommodation are brilliant forms of resistance to settler-colonial control.

**Living Legal Shifts in the Settler State**

The settler-colonial state was unable to get rid of Peyotism per politics and its own internal logic, so it seems that it turned back to the colonization playbook with different focuses. In 1953, a bill passed through the House of Representatives called *House Concurrent Resolution 108,* in which was a declaration of policy shift that called for the end of government-to-government relationships with Indigenous Nations.[45] The bill used liberatory language, but in reality HCR 108 allowed the state to terminate the sovereignty of many Indigenous Nations—a period that is known as the *Termination Era*. While not the first attempt at forced assimilation, this was one of the most recent and relatively effective efforts. This policy in combination with Public Law 280 forcefully terminated the legal status of one-hundred-nine Nations, and transferred any land held in trust by those Nations to the ownership of the federal government. It was a land grab that stripped legal protections and the cultural sovereignty of more than thirty-thousand Indigenous people.[46]

In a seemingly unrelated change, in the 1960s the federal government was reacting to radical cultural changes and rising "drug" problems in communities across the United States. Faced with simultaneous cultural movements like the Anti-War movement, the New Left, Beatlemania, Civil Rights, Hippies, and the Cold War, Middle America chose to lean into law-

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[45] National Archives, "Bureau of Indian Affairs Records: Termination," *American Indian and Alaska Native Records in the National Archives* (research guide), https://www.archives.gov/research/native-americans/bia/termination
[46] University of Alaska Fairbanks, Alaska Native Studies, "Termination Era: The 1950s—Public Law 280," https://www.uaf.edu/tribal/academics/112/unit-2/terminationerathe1950spubliclaw280.php

and-order politics lofting Richard Nixon as their champion. Nixon, his Republican allies, and Democrats worked together to gain better control of the tumultuous situation, and one of their many strategies was to ban "drugs," especially those associated with counter-cultural elements. *The Controlled Substances Act of 1970* banned many substances considered "drugs," including Peyote because it contains an alkaloid called mescaline. The government categorized mescaline (and therefore Peyote) as a *Schedule 1 Controlled Substance*, a category reserved for a material with no medical value, a high potential for abuse and concerns about safety.[47] The peril faced by Indigenous people, and their religions was at a fever pitch, until something unexpected happened. While the CSA loomed as a new threat to Peyotism, the Nixon administration paradoxically prioritized the continuation of Indigenous culture.

On July 8, 1970, Nixon called on congress to end forced assimilation of Indigenous peoples, instead he called for self-determination.[48] Nixon cited the myth of a benevolent federal government caring for Indigenous people, poor outcomes for those terminated and an implicit threat toward recognized tribes, that they could be stripped of their sovereignty. For years restoration acts trickled through the legislature, slowly restoring the rightful sovereignty of some terminated nations. In 1978, a bill called the *American Indian Religious Freedom Act* was passed as a joint resolution signed by President Carter. With this the federal government reaffirmed that it no longer held a policy of forced assimilation and that they would respect Indigenous cultures and religions, but not for the groups that were already terminated.[49]

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[47] 21 U.S.C. § 801 (U.S. Code, "prelim" ed.), Office of the Law Revision Counsel, U.S. House of Representatives, https://uscode.house.gov/view.xhtml;jsessionid=2C85B8DEBFB1BB15A7D31E29A34C3DAA?req=granuleid%3AUSC-prelim-title21&saved=%7CZ3JhbnVsZWlkOlVTQy1wcmVsaW0tdGl0bGUyMS1zZWN0aW9uODAx%7C%7C%7C0%7Cfalse%7Cprelim&edition=prelim Search for "Schedules of controlled substances" Sub Section 812

[48] Richard Nixon, "Special Message to the Congress on Indian Affairs," July 8, 1970, *The American Presidency Project*, https://www.presidency.ucsb.edu/documents/special-message-the-congress-indian-affairs

[49] United States Congress, *Act of August 11, 1978 (American Indian Religious Freedom Act)*, Pub. L. No. 95–341, 92 Stat. 469 (1978), as amended through Pub. L. No. 103–344 (October 6, 1994), U.S. Government Publishing Office,

This was the positionality of Al Smith. Born a Klamath man, the Klamath were a terminated nation, so he was reduced to an Oregonian. Smith had a hard life beginning with the childhood trauma of being torn from his family at the tender age of seven and sent to a Bureau of Indian Affairs sponsored Catholic assimilation school in 1930. He resisted as a child could, he recalled in an interview lying to the nuns when asked if he was baptized, he said he was. He was also known to run away to try to return home. Perhaps because of those years of trauma, he became an alcoholic and fought the war of addiction for much of his life. However, through a great deal of study and work he found sobriety by combining methods of Alcoholics Anonymous (AA), and Indigenous healing methods including clandestine Peyote experiences with the NAC.[50]

By the 1970s, Smith was a professional healer with nearly two decades of sobriety under his belt. He was regarded by the AA community as a consummate professional who helped set up grants, networked with AA and Indigenous communities and flew around the country to help other people battle their own alcoholism. In 1978 he attended Peyote ceremonies but had refrained from the sacrament because he did not know how Peyote would affect his sobriety, however his clients sometimes did and found benefits.[51] In 1979, he ate Peyote twice but did not consider himself part of the NAC, although he had a strong understanding of the Church's philosophy.[52] In 1981, he was hired on with the Douglas County Council on Alcohol and Drug Abuse Prevention and Treatment (ADAPT) that used some Indigenous healing methods including sweat lodge healing—Smith's forte.[53] One of the most prominent methods Smith

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*COMPS* no. 5293 (October 8, 2019) https://meherrinnation.org/history-culture/history/the-american-indian-religious-freedom-act/

[50] Garrett Epps, *To an Unknown God: Religious Freedom on Trial* (New York: St. Martin's Press, 2001) p 16

[51] Epps, To an Unknown God p 55

[52] Epps, To an Unknown God p 64

[53] *Lyng v. Northwest Indian Cemetery Protective Ass'n*, 485 U.S. 439 (1988), https://supreme.justia.com/cases/federal/us/485/660/

employed was praying, singing, and meditating in a sweat lodge, a set of skills he had developed in his search for sobriety. Smith used his positionality, experience with alcoholism, and experience helping people through their own struggles with drink as he maintained a sweat lodge in which he hosted healing sessions. Alfred Smith was already continuing the tradition of Indigenous style healing even after having that identity largely stripped from him.

Another man, Galen Black, also worked at ADAPT starting in 1983. Galen was a white man who had been a spiritual seeker drawn to Indigenous religious practices for healing in his own campaign with alcoholism. He had also been invited to participate in NAC gatherings for the consumption of Peyote. Galen worked closely with Smith as something of an apprentice learning about Indigenous medicine including the sweat lodge and the Native American Church. Smith talked about his experience with Black regarding the church emphasizing that he was unsure about it because of his concerns about maintaining his sobriety. Black shared these concerns but also a strong interest in the NAC particularly because of the NAC's Peyote Road value system.[54]

Black became more involved in the Church in spring of 1983, and in October he was fired after admitting to having consumed sacred Peyote as an honored guest and thereby violating ADAPT's substance use policy in his contract.[55] Afterward, ADAPT leadership held training about the policy regarding the use of non-prescription substances and counseled Al Smith directly about his participation in NAC Peyote practices. However, so did Stanley Smart, the Roadman for the local unofficial chapter of the NAC with whom Black and Smith had been

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[54] Tangent: There is a strange tension here between two methods of maintaining sobriety that reflect larger tensions between the division of medicine and spirit. Remember that sobriety from alcohol is a priority for both ADAPT and Peyotists. They both want the same thing but have very different perceptions of what Peyote is. This is the bifurcation of the plant-medicine-drug dynamic.

[55] Carolyn N. Long, *Religious Freedom and Indian Rights: The Case of Oregon v. Smith* (Lawrence: University Press of Kansas, 2001) p 40

in contact with. Smart encouraged Smith to take the Sacrament and that if ADAPT did the same thing they did to Galen Black, they could create an opportunity for state courts to allow for religious Peyote exemptions statewide—A major opportunity for the expansion of the Peyote Road. The Roadman saw this as a chance for Al Smith to stand up for his apprentice, his religion, and his people all at once.[56]

In an interview with historian Carolyn Long, Al Smith indicated that this crossroads was a major crisis for him. He could not stand the thought of being told to maintain distance from his culture and spirituality as he had as a child. On March 3, 1984, Smith informed his employers at ADAPT that "he needed to go to church" and was reminded that he could go to NAC meetings but if he ate Peyote, he would be terminated immediately. That night in accordance with his religious convictions, in solidarity with Galen Black, and in the ancient spirit of resistance of Peyotists before him, Alfred Smith held communion with Peyote in a ceremony with his NAC community. Two days later when he reported his actions, ADAPT told him to resign or be terminated, he refused.[57]

## The Court and the Cactus

When Smith sought unemployment compensation insurance, that request was denied on grounds of violation of his contract with ADAPT. Al Smith chose this moment to resist the state in a similar way to the Wixárika and Quannah Parker. To Smith it was not about money, but rather the chance to counter the stigma of his religion, to defend the right of Free Exercise as guaranteed by the First Amendment and to protect an ancient rite that had been practiced by some Indigenous peoples for thousands of years. He sought lawyers and made the argument that

[56] Long, Religious Freedom and Indian Rights, p 72
[57] Long, Religious Freedom and Indian Rights, 73

his religious expressions were equal to any other.[58] Smith chose the resistance tactic of direct confrontation with the settler-colonial government.

Over the next six years, the case was bandied back and forth in the state courts and even rose to the Supreme Court of the United States for the first time in 1987 before the Supreme Court remanded the case back down to the Oregon Supreme Court. Garret Epps and Carolyn Long point out that this may have been an errant action as they were seeking clarification if there had been criminal conduct, but the case was a civil one; the Oregon Supreme Court replied that Oregon law banned Peyote, but that the proceeding carried no punitive stakes. But then there was an unexpected twist. On October 18, 1988, the Oregon Supreme court ruled that Black and Smith were now entitled to unemployment compensation because they were unconstitutionally fired for consuming Peyote in accordance with their First Amendment rights, finally some good news for religious liberty! However, it was not to last. In January of 1989, the Attorney General of Oregon filed a petition to return Employment Division v. Smith before the Supreme Court of the United States to double check that the First Amendment was being properly applied in the state Supreme Court's decision. The case was headed back to the Federal Supreme Court.

November 6, 1989, Al Smith was far from home and was instead at the so-called Temple of American Justice as Chief Justice Rehnquist called the chamber to order. When the court hears a case, they have case briefings but oral arguments can only take one hour; thirty minutes for the Petitioner represented by Attorney General David Frohnmayer, then thirty minutes for the Respondents represented by Craig Dorsay.[59] The Justices take turns asking questions and often make up hypotheticals related to the case to think about how their decisions might affect the

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[58] Long, Religious Freedom and Indian Rights, 77

[59] *Employment Division, Department of Human Resources of Oregon v. Smith*, No. 88-1213, *Oyez* (Supreme Court media and case summaries), https://www.oyez.org/cases/1989/88-1213

legal system. On April 17, 1990, the majority of five Justices decided that Smith and Black could be held criminally liable for consuming Peyote should the state of Oregon choose to pursue it. [60] The court concluded that Al Smith's religious convictions could not be exempted from generally applicable law. Since 1963 there had been a legal test called "the compelling interest test." That test prevented governments from taking action that infringed on religious rights unless that government could show a critical compelling interest.[61] This statement written by Justice Scalia effectively terminated all judicial protections for all religions, as and in his end note he encouraged religious organizations to seek exemption through legislature.[62] Suddenly, the legally precarious nature of Peyote sacraments was expanded, and every faith was under threat.

Some protections still existed, for example, religions could not be targeted by specific laws calling them out by name. A hypothetical law that explicitly banned the Native American Church religion would not be constitutional, because it targeted a religion, but if Peyote cactus is banned by "generally applicable law," even though that threatens a core sacrament of that faith, that is okay. The Supreme Court asserted the supremacy of U.S. settler-colonial law over Peyotist cosmologies specifically, and all faith systems by extension. Al Smith's gambit of direct confrontation for what was right, and the Supreme Court's overreaction to the case, ruptured the First Amendment.

Beyond his own legal team, Smith had been relatively alone in his years-long fight for religious freedom. He had requested assistance from the Native American Rights Fund (NARF) in 1983, but it is likely that because his legal status as an Indigenous person had been terminated,

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[60] Decision Announcement by Antonin Scalia https://www.oyez.org/cases/1989/88-1213
[61] *Sherbert v. Verner*, 374 U.S. 398 (1963), *Oyez* (Supreme Court media and case summaries), https://www.oyez.org/cases/1962/526
[62] Justia U.S. *Employment Division, Department of Human Resources of Oregon v. Smith*, 494 U.S. 872 (1990), https://supreme.justia.com/cases/federal/us/494/872/

it was outside their scope. He also requested assistance from the Native American Church of North America (the international structure of the NAC) but because of his peripheral positionality to their organization, they did not trust their stake in helping him. Both organizations now felt sure-footed to be directly involved. They began a process of calling up and finding allies while lobbying the legislature to reinstate judicial protections for religions, specifically for Peyote. When the cavalry came, the result is the most religiously-diverse political action group in American history.

**Needling Congress [63]**

The collective effort that followed *Employment Division v. Smith* is nothing less than exceptional, religious organizations of diverse faiths and political leanings came together to do exactly what Justice Scalia suggested, get legislation passed for religious exemptions. There are too many to list all participants but some recognizable names were NACNA, NARF, ACLU, Church of Jesus Christ of Latter Day Saints, National Council of Jewish Women, American Muslim Council and National Association of Evangelicals etc.[64] This coalition quickly launched a lobbying campaign and legislative crafting effort. In May of 1990, it was already too late to realistically think that any legislation would be signed by the end of the session in October, however, acting fast was the best way to overturn *Smith.* An early draft of the Religious Freedom Restoration Act (RFRA) was prepared and was introduced by Rep. Stephen J. Solarz and ninety-nine co-sponsors on July 26, 1990. This bill, while doomed, set the foundation for what RFRA would do.

> "Religious Freedom Restoration Act of 1990 - Prohibits a governmental authority from restricting any person's free exercise of religion unless: (1) the restriction is in the form of

[63] Tangent: I know peyote does not have needles, but the pun is too juicy to pass up. I am open to modifications if a better metaphor, that stays on theme, is available.
[64] Christian Legal Society, "How the Religious Freedom Restoration Act Benefits All Americans" (PDF), https://www.clsnet.org/document.doc?id=803&utm

> a rule of general applicability that doesn't intentionally discriminate against religion or among religions; and (2) the governmental authority demonstrates that application of the restriction to a person is essential to furthering a compelling governmental interest and the least restrictive means of doing so. Authorizes a party aggrieved by a violation of such prohibition to obtain relief, including attorney fees, in a civil action."[65]

The bill called for the return to the pre-*Smith* status quo, reinstating the compelling interest test and placing the responsibility of religious exemptions back on the courts. The bill failed to pass from 1990-1992, primarily because of concerns about how the text would affect the legal position of abortion. RFRA finally crossed the threshold through the Senate in 1993 carried by Senator Charles Schumer on unanimous consent and was signed into law by President Bill Clinton.[66] For most faiths this was the end of the coalition.

One of the most delicious ironies in this story is the fact that the Catholic Church wound up pushing for RFRA, a measure that would partially protect Indigenous freedom, and the fact they did it over Al Smith, who had parts of his identity excised in a Catholic institution. The religion that had repressed Indigenous plant medicines, Indigenous ways of life, and religions was now arguing in favor of those traditions. The Catholics were doing it in this self-serving way, but it is ironic that they wind up in that position. The Native American Church had successfully wrestled some of the most controlling interests in western politics and religion into a position where they would be treated as equals. The hitch with this legislation is that RFRA failed to mention Peyote by name; another piece of legislation was needed to ensure that Peyotism would be safe.

To shore up legal protections for Peyotists, an amendment to an older piece of legislation was selected as the most opportune vehicle to accomplish the task. The American Indian

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[65] H.R. 5377, *Religious Freedom Restoration Act of 1990*, 101st Cong. (introduced July 26, 1990), Congress.gov, https://www.congress.gov/bill/101st-congress/house-bill/5377

[66] Long, Religious Freedom and Indian Rights, 237

Religious Freedom Act Amendments of 1994 (AIRFA amendments) emerged from widespread recognition that the original AIRFA of 1978, though symbolically important, offered Indigenous religious practitioners little meaningful legal protection. Courts had repeatedly held that AIRFA articulated federal policy but created no enforceable mechanism, a weakness revealed in *Lyng v. Northwest Indian Cemetery Protective Association* (1988), where the Supreme Court allowed federal land development to proceed despite its devastating impact on Indigenous religious practice citing that unenforceability.[67] [68] This vulnerability became a critical wound after *Employment Division v. Smith*. Together, these decisions exposed Indigenous ceremonial Peyote use to criminalization under state law, and left Indigenous religious freedom dependent on inconsistent regulatory exemptions rather than statutory guarantees.

NACNA, the National Congress of American Indians (led by legendary activist and Roadman Reuben Snake Jr.) and allied groups coordinated intertribal coalitions, organized formal legislative projects, partnered with legal organizations, including NARF, to draft statutory language for the amendments. Meanwhile the AIRFA coalition conducted sustained in-person lobbying of members of Congress and their staff, supported by expert testimony in hearings and policy briefings after *Employment Division v. Smith* (1990).[69] They also used public-facing advocacy—media interviews, speaking tours, documentary projects, and written statements framing Peyote consumption as a civil-right and religious-freedom issue—to educate lawmakers and build political pressure for the 1994 AIRFA amendments. The amendments declared that the possession, transportation, and use of Peyote by Indigenous people for bona fide religious

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[67] Sacred Land Film Project, "U.S. Laws & Court Cases Involving Sacred Lands," *Sacred Land*, n.d., accessed January 28, 2026, https://sacredland.org/u-s-laws-court-cases-involving-sacred-lands/
[68] *Lyng v. Northwest Indian Cemetery Protective Ass'n*, 485 U.S. 439 (1988), https://supreme.justia.com/cases/federal/us/485/439/
[69] Maroukis, *The Peyote Road,* p 205-210

purposes was lawful and could not be prohibited by either federal or state governments, nor serve as grounds for discrimination in employment, public benefits, or civil status.[70]

Congressmen Bill Richardson, who sponsored the bill emphasized on the floor of the House of Representatives that Peyote was not a recreational narcotic but a sacrament central to the spiritual life, moral order, and cultural continuity of many tribes, particularly within the Native American Church.[71] [72] The statute thus represented a direct congressional rebuke to the legal uncertainty produced by the judiciary's decision in *Smith*, carving out a narrow but firm religious exemption within the broader framework of American drug prohibition. On August 8, 1994, the bill passed through the house by voice vote; it passed the Senate by voice vote September 27 and was signed into law by President Clinton October 6, 1994. After nearly a half-decade of effort Peyotists were finally able to practice their religion properly sheltered under the law. Both RFRA and AIRFA serve as valuable reminders about the last form of resistance outlined, coalition statecraft to confront settler-colonial pressures. Resistance movements sometimes advance most by finding common ground, even with historic rivals and enemies. There is critical nuance here, because these opportunities are rare and fleeting, but if a resistance movement can find very specific problems that affect a broad coalition of people, it is possible to fix those problems like the erosion of legally enshrined rights.

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[70] United States Congress, *American Indian Religious Freedom Act*, Pub. L. No. 95–341, 92 Stat. 469 (1978), as amended through Pub. L. No. 103–344 (October 6, 1994), in *Compilation of Selected Acts within the Jurisdiction of the Committee on Indian Affairs*, *COMPS* no. 5293 (Washington, DC: U.S. Government Publishing Office, October 8, 2019), https://www.govinfo.gov/content/pkg/COMPS-5293/pdf/COMPS-5293.pdf

[71] Bill Richardson, "Introduction of Legislation Protecting the Religious Use of Peyote by Indians in Traditional Ceremonies," *Congressional Record* 140, no. 41 (April 15, 1994): E54, https://www.govinfo.gov/content/pkg/CREC-1994-04-15/html/CREC-1994-04-15-pt1-PgE54.htm

[72] The bill was co-sponsored by Rep. Ed Pastor – AZ and the civil rights leader Rep. John Lewis – GA

## Conclusion

This project has argued that Peyote religions are best understood as sites of Indigenous power rather than as marginal faiths occasionally protected by legal neutrality. Across the cases traced, Peyotism persists; not because the settler state gradually becomes benevolent, but because Indigenous practitioners repeatedly deploy culturally specific methods of resistance. Those methods are not reducible to a single heroic moment, rather, they are a tool kit with different use in different situations: withdrawal and continuity, tactical legibility-making, direct confrontation, and coalition statecraft. This work has also shown that Peyote a social technology capable of sustaining Indigenous societies under pressure, generating Entheogenic spiritual power that settler-colonial regimes have historically tried to discipline, domesticate, or erase. In that sense, the legal status of Peyote has never been only about pharmacology. It has been about governability: who gets to define "religion," who must translate themselves into intelligible forms, and what kinds of Indigenous continuity the state is willing to tolerate. These episodes show that resistance to that governance is a long historical practice, one that moves between geographies, legal systems, communities and fields of study.

The Wixárika show the first method of withdrawal and continuity through collective cultural practice. In resistance history, this matters because it reminds us that survival is neither passive endurance, nor does resistance need to be defined by permanent engagement in direct conflict. The second method, tactical legibility-making, appears most sharply in the Native American Church's decision to become a legal object that the settler state could recognize. The incorporation strategy is not surrender to Christian hegemony but, a selective accommodation under a recognition regime. By adopting cues that made outsiders comfortable—sobriety, moral reform language, and recognizable ecclesial structure, Peyotists created a protective shell within

which the ceremony could continue. In resistance history the lesson is uncomfortable but worthy of reflection: legibility making can be a tactic, so long as the community does not surrender identity.

The third method, direct confrontation as revealed in Al Smith's decision to place the Sacrament at the center of a legal conflict that he refused to evade is potent. Smith exposed how legal regimes both by the state and would-be-allies attempt to force Indigenous practice into a binary: obey the rules of "general applicability" or be punished. The overreach performed by the Supreme Court in this instance announced a malevolent theory of governance in which minority religions can be burdened so long as the burden is generalized. Confrontation is rarely "clean." It is slow, exhausting, and often produces losses in the short term—yet it can also reveal the underlying architecture of power with a clarity that quieter strategies cannot. The final method, coalition statecraft, can generate institutional change within the settler-colonial system even if those coalitions are short lived and self-serving. The post-*Smith* mobilization coalition shows that resistance can sometimes advance by constructing narrow goals that bridge chasms of difference.

Withdrawal and continuity preserved the living tradition; legibility-making kept the ceremony viable under scrutiny; confrontation clarified the stakes; coalition translated those stakes into statutory form. The larger lesson is that movements often win not by purifying themselves of compromise, but by identifying the specific pressure points where a broad coalition can impose costs on state power without dissolving the movement's core commitments. Seen through this four-part repertoire, Peyote appears less as an exotic footnote to American religious freedom and more as a meta-study of how Indigenous communities have navigated settler-colonial occupation.

As a supportive observer of both Indigenous cosmologies and of Entheogens, the root lesson in this story is best summed up by ethnobotanist Terrence McKenna who says,

*"The act of conscious self-inspection creates more conscious people, which create a more conscious society, which erodes the possibility of the poisonous and toxic effects of ideology. This is what psychedelics were and are about in terms of their social position and their legal position in society. Psychedelics are illegal not because a loving government is concerned that you may jump out of a third-story window. Psychedelics are illegal because they dissolve opinion structures and culturally laid down models of behavior and information processing. They open you up to the possibility that everything you know is wrong."*[73]

This quote was the guiding energy for this analysis because, with the context of the story of Peyotism, McKenna's language of "dissolving opinion structures" can be read historically. Entheogenic-centered organizations like Peyotism allow heightened cultural contrast both for individual habits of thought and the preferred narratives of settler society. Like a critical study of history, Entheogens can serve as a tool to repel or reconsider cultural programming, prompting questions of culture like, what counts as religion, whose healing is legitimate, is sovereignty real or merely tolerated, and who is deciding that for us? As those questions linger so too does McKenna's mantra, "[Colonial] Culture is not your friend."[74]

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[73] Terence McKenna, "Nature is the Center of the Mandala," lecture transcript, September 12, 1987, The Library of Consciousness (Organism Earth), https://www.organism.earth/library/document/nature-is-the-center-of-the-mandala
[74] "Terence McKenna - Culture is not your friend," YouTube video, n.d., https://www.youtube.com/watch?v=j0JneoZwQ_E

Bibliography

Aberle, David F. *The Peyote Religion among the Navaho*. 2nd edition. Norman: University of Oklahoma Press, 1991.

Anderson, Edward F. *Peyote: The Divine Cactus*. Tucson: University of Arizona Press, 1996. https://uapress.arizona.edu/book/peyote.

Christian Legal Society. "How the Religious Freedom Restoration Act Benefits All Americans." PDF. https://www.clsnet.org/document.doc?id=803&utm

Congress.gov. "H.R. 5377 — Religious Freedom Restoration Act of 1990." 101st Congress (1989–1990). https://www.congress.gov/bill/101st-congress/house-bill/5377

Drug Enforcement Administration. "Controlled Substances Act" https://uscode.house.gov/view.xhtml;jsessionid=2C85B8DEBFB1BB15A7D31E29A34C3DAA?req=granuleid%3AUSC-prelim-title21&saved=%7CZ3JhbnVsZWlkOlVTQy1wcmVsaW0tdGl0bGUyMS1zZWN0aW9uODAx%7C%7C%7C0%7Cfalse%7Cprelim&edition=prelim

Epps, Garrett. *To an Unknown God: Religious Freedom on Trial*. New York: St. Martin's Press, 2001.

Feldman, Noah. *Divided by God: America's Church-State Problem—and What We Should Do About It*. New York: Farrar, Straus and Giroux, 2005. https://virginiatech.primo.exlibrisgroup.com/permalink/01VT_INST/1qimi5t/alma991012678829708646

Furst, Peter T., and Stacy B. Schaefer. *People of the Peyote : Huichol Indian History, Religion, & Survival*. 1st ed. University of New Mexico Press, 1996. EBSCOhost.

Hamilton, Marci A. *God vs. the Gavel: Religion and the Rule of Law*. Cambridge: Cambridge University Press, 2005.

Justia U.S. Supreme Court Center. *Employment Division, Department of Human Resources of Oregon v. Smith*, 485 U.S. 660 (1988). https://supreme.justia.com/cases/federal/us/494/872/

Justia U.S. Supreme Court Center. *Lyng v. Northwest Indian Cemetery Protective Association*, 485 U.S. 439 (1988). Accessed January 9, 2026. https://supreme.justia.com/cases/federal/us/485/439/

Labate, Beatriz C., and Clancy Cavnar, eds. *Prohibition, Religious Freedom, and Human Rights: Regulating Traditional Drug Use*. Berlin: Springer, 2014. https://virginiatech.primo.exlibrisgroup.com/permalink/01VT_INST/1vlidq4/cdi_askewsholts_vlebooks_9783642409578

Lee, Lloyd L., ed. *Diné Perspectives: Revitalizing and Reclaiming Navajo Thought*. 1st ed. Tucson, Arizona: University of Arizona Press, 2014. https://virginiatech.primo.exlibrisgroup.com/permalink/01VT_INST/1qimi5t/alma991013205459708646

Levrier-Jones, George. "Captured by the Comanche in the American West in the 1830s: The Story of Cynthia Ann Parker." *History is Now Magazine*, March 9, 2024. Accessed January 5, 2026. https://www.historyisnowmagazine.com/blog/tag/Peta+Nocona

Long, Carolyn N. *Religious Freedom and Indian Rights: The Case of Oregon v. Smith*. Lawrence: University Press of Kansas, 2001.

Maroukis, Thomas C. *The Peyote Road: Religious Freedom and the Native American Church*. Norman: University of Oklahoma Press, 2010.

McConnell, Michael W. “The Origins and Historical Understanding of Free Exercise of Religion.” *Harvard Law Review*. 103, no. 7 (1990), 1409–1517. https://virginiatech.primo.exlibrisgroup.com/permalink/01VT_INST/1vlidq4/cdi_proquest_miscellaneous_61175276

McKenna, Terence. “Nature Is the Center of the Mandala.” *Organism Earth* (library document / transcript). Accessed January 28, 2026. https://www.organism.earth/library/document/nature-is-the-center-of-the-mandala

Mooney, James W. F. “The Article of Incorporation for the Native American Church.” https://jameswfemooney.com/the-article-of-incorporation-for-the-native-american-church/

Myerhoff, Barbara G. *Peyote Hunt: The Sacred Journey of the Huichol Indians*. Ithaca, NY: Cornell University Press, 1974.

National Archives. “American Indian Records: Termination.” https://www.archives.gov/research/native-americans/bia/termination

Native American Rights Fund / National Indian Law Library. “NARF Legal Review” https://narf.org/nill/documents/nlr/nlr20-1.pdf

Negrín, Juan. “Post-Hispanic History of the Wixáritari People: In the Sierra Madre Occidental.” PDF, June 2003. Accessed January 3, 2026. https://www.wixarika.org/sites/default/files/2023-07/posthispanichistory.pdf

Ott, Jonathan. “Entheogens II: On Entheology and Entheobotany.” *Journal of Psychoactive Drugs* 28, no. 2 (April–June 1996): 205–209.

Peregoy, Robert M., Walter R. Echo-Hawk, and James Botsford. “Congress Overturns Supreme Court’s Peyote Ruling.” *Native American Rights Fund Legal Review* 20, no. 1 (Winter/Spring 1995). https://narf.org/nill/documents/nlr/nlr20-1.pdf.

Polanco, Edward Anthony. *Healing Like Our Ancestors: The Nahua Tiçitl, Gender, and Settler Colonialism in Central Mexico, 1535–1660*. Tucson: University of Arizona Press, 2024.

Richardson, Bill. "Introduction of Legislation Protecting the Religious Use of Peyote by Indians in Traditional Ceremonies." *Congressional Record* 140, no. 41 (April 15, 1994): E54. Accessed January 26, 2026. https://www.govinfo.gov/content/pkg/CREC-1994-04-15/html/CREC-1994-04-15-pt1-PgE54.htm

Sacred Land Film Project. "U.S. Laws & Court Cases Involving Sacred Lands." Accessed December 27, 2025. https://sacredland.org/u-s-laws-court-cases-involving-sacred-lands/

Schmal, John P. "Indigenous Nayarit: Resistance in the Sierra Madre." *Indigenous Mexico*, September 5, 2024, Accessed January 6, 2026. https://www.indigenousmexico.org/articles/indigenous-nayarit-resistance-in-the-sierra-madre

Stewart, Omer C. *Peyote Religion: A History*. Norman, OK: University of Oklahoma Press, 1993. https://www.oupress.com/9780806124575/peyote-religion/

Tinker, George E. *Spirit and Resistance: Political Theology and American Indian Liberation*. Minneapolis: Fortress Press, 2004. https://virginiatech.primo.exlibrisgroup.com/permalink/01VT_INST/1qimi5t/alma991013032039708646

Terence McKenna (official site). Accessed January 20, 2026 https://www.terencemckenna.com/

Terence McKenna - Culture is not your friend." YouTube video. Accessed January 28, 2026. https://www.youtube.com/watch?v=j0JneoZwQ_E

University of Alaska Fairbanks, College of Indigenous Studies. "Termination Era (the 1950s) & Public Law 280." https://www.uaf.edu/tribal/academics/112/unit-2/terminationerathe1950spubliclaw280.php

U.S. House of Representatives, Office of the Historian. "Era of U.S. Continental Expansion." https://history.house.gov/Exhibitions-and-Publications/HAIC/Historical-Essays/Continental-Expansion/Era-of-U-S--Continental-Expansion/

U.S. Government Publishing Office. *Act of August 11, 1978 (American Indian Religious Freedom Act)*, Pub. L. 95–341, as amended through Pub. L. 103–344 (Oct. 6, 1994). (GovInfo "COMPS-5293" compilation PDF.) https://www.govinfo.gov/content/pkg/COMPS-5293/pdf/COMPS-5293.pdf

United States Code. 21 U.S.C. § 801 (Congressional findings and declarations).. https://uscode.house.gov/view.xhtml?req=granuleid%3AUSC-prelim-title21&edition=prelim

University of California, Santa Barbara, The American Presidency Project. Richard Nixon, "Special Message to the Congress on Indian Affairs," July 8, 1970. https://www.presidency.ucsb.edu/documents/special-message-the-congress-indian-affairs

Wasson, R. Gordon, and Valentina P. Wasson. *Mushrooms, Russia and History*. 2 vols. New York: Pantheon Books, 1957. https://archive.org/details/wasson-1957-mushrooms-russia-history/page/225/mode/2up?q=peyote

Wenger, Tisa Joy. *We Have a Religion: The 1920s Pueblo Indian Dance Controversy and American Religious Freedom*. Chapel Hill: University of North Carolina Press, 2009. https://virginiatech.primo.exlibrisgroup.com/permalink/01VT_INST/1vlidq4/cdi_proquest_miscellaneous_37226968

Yu, Inas, et al. “Identification of Mescaline in Prehistoric Peyote (Lophophora williamsii) Samples.” *Journal of Ethnopharmacology* 101, no. 1–3 (2005): 238–242. https://www.sciencedirect.com/science/article/abs/pii/S0378874105002990?via%3Dihub